



UTTLESFORD DISTRICT COUNCIL

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Secretary of State
Ministry of Housing
Communities and Local
Government
2 Marsham Street
London
SW1P 4DF

Friday 12th June 2026

Our ref: **UTT/25/3011/OP**

Please ask for Chris Tyler on [REDACTED]

email: [REDACTED]

planning@uttlesford.gov.uk

Dear Secretary of State,

THE TOWN AND COUNTRY PLANNING (DEVELOPMENT MANAGEMENT PROCEDURE) (ENGLAND) (AMENDMENT AND TRANSITIONAL PROVISION) ORDER 2026

REFERRAL OF PLANNING APPLICATION – UTT/25/3011/OP

LOCATION: Land West of Birchanger Lane, Birchanger

In accordance with Amended article 18(5) of the Town and Country Planning (Development Management Procedure) (England) Order 2015 as per the above Order 2026 and in accordance with section 77 of the Town and Country Planning Act 1990, Uttlesford District Council hereby refers the following planning application for your consideration:

Application Details:

- **Reference:** UTT/25/3011/OP
- **Applicant:** City & Country Stansted Ltd
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within the newly adopted local plan and the housing land supply at 4.77 years has been applied limited weight.

Refusal Reason 1.

The proposed development, by reason of its location on an unallocated site outside the defined settlement boundary, would conflict with the Council's spatial strategy for the distribution of growth.

The proposal is therefore contrary to Core Policy 2 (Meeting Our Housing Needs), Core Policy 3 (Settlement Hierarchy) and Core Policy 19 of the Uttlesford Local Plan 2021–2041, which direct development to allocated sites and the most sustainable settlements.

Furthermore, the proposal would constitute unsustainable development when assessed against the National Planning Policy Framework (NPPF), in particular paragraphs 11 and 5, which emphasise a plan-led approach to development and the delivery of housing in appropriate locations.

As such, the proposal is not considered to accord with the Development Plan when taken as a whole.

Refusal Reason 2.

The proposed development would constitute inappropriate development within the Green Belt by reason of its scale and nature. It would result in harm to the openness of the Green Belt and conflict with the purposes of including land within it, particularly in terms of encroachment into the countryside.

The site is not considered to fully fall within the definition of Grey Belt and therefore attracts full Green Belt protection.

In the absence of very special circumstances, the identified harm to the Green Belt, both by definition and in spatial terms, is not clearly outweighed by other considerations.

The proposal is therefore contrary to Core Policy 59 (The Metropolitan Green Belt) of the Uttlesford Local Plan 2021–2041 and the National Planning Policy Framework (NPPF), in particular Section 13, which attaches great weight to the protection of the Green Belt.

Supporting Documentation:

Enclosed with this letter are:

1. The Committee Report and recommendation
2. Draft Minutes of the Planning Committee

We respectfully request that you consider whether to call in this application for determination.

All planning documentation relating to this application is available to view on the Council's website at:

<https://www.uttlesford.gov.uk/planning-applications>

Should you require any further information, please contact Chris Tyler, Principal Planning Officer, at [REDACTED] or planning@uttlesford.gov.uk.

We would be grateful if any confirmation regarding whether the application is to be called in could also be provided via these email addresses.

Yours sincerely,

[REDACTED]

Maria Shoesmith
Strategic Applications Team Leader